

PLACER COUNTY SUPERIOR COURT
THURSDAY, CIVIL LAW AND MOTION
DEPARTMENT 3
THE HONORABLE MICHAEL W. JONES
TENTATIVE RULINGS FOR JULY 2, 2026, AT 8:30 A.M.

5. S-CV-0047322 NEGRETE, GERARDO v. ACE HARDWARE

Plaintiffs' Motion for Preliminary Approval of Class and Representative Action Settlement

The unopposed motion is granted. The court has broad discretion in determining whether a class action settlement is (1) fair and reasonable, (2) the class notice is adequate, and (3) certification of the class is proper. (*In re Cellphone Fee Termination Cases* (2010) 186 Cal.App.4th 1380, 1389.) Further, the court reviews the moving papers along with the entirety of the court file to determine that the settlement is genuine, meaningful, and consistent with the underlying purposes of the PAGA-related statute. (Labor Code section 2699(s); *O'Connor v. Uber Technologies, Inc.* (N.D. Cal. 2016) 201 F.Supp.3d 1110.) The court must also determine whether the PAGA settlement appears fundamentally fair, reasonable, and adequate. (*Ibid.*)

The court has carefully reviewed and considered the Settlement Agreement of Class Action and Private Attorneys General Act Claims and plaintiffs' moving papers filed in connection with the motion. The court determines a sufficient showing has been made that the class action settlement is fair, reasonable, genuine, meaningful, and adequate. The court also determines the settlement is fair, reasonable, genuine, and consistent with the purpose of PAGA.

For the purposes of the settlement, the court hereby certifies the class as defined on page 1, paragraph B of the Settlement Agreement of Class Action and Private Attorneys General Act Claims. The court preliminarily approves the Settlement Agreement of Class Action and Private Attorneys General Act Claims and Class Notice. The court approves the proposed form of the notice, and incorporates by reference the findings and orders outlined in the proposed order lodged with the court on June 10, 2026.

The final approval hearing is set for **Thursday, November 5, 2026, at 8:30 a.m. in Department 3.**

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